

TENTATIVE RULING

Case: **Perez v. Wyndham Destinations, Inc., et al.**
Case No. CV-2021-0289

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Benjamin Perez' request to confirm tolling of the five-year period is **DENIED**. (Code Civ. Proc., § 583.340, subd. (c).) Plaintiff has not met his burden to show that circumstances warrant application of the exception to the five-year limitation of Code of Civil Procedure section 583.310. (*Oswald v. Landmark Builders, Inc.* (2023) 97 Cal.App.5th 240, 247, 248.)

Plaintiff's request to specially set trial is **GRANTED**. (Code Civ. Proc., § 128.)

Parties are **DIRECTED TO APPEAR** and should be prepared to select a trial date on or before February 18, 2026, or stipulate to set trial on a later date. (Code Civ. Proc., § 583.340.)

TENTATIVE RULING

Case: **Ramirez et al. v. Ceja-Reyes, Inc. et al.**
Case No. CV-2023-0029

Hearing Date: **January 14, 2026** **Department Eleven** **9:00 a.m.**

Defendant Westside Transplant, LLC's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's unopposed motion to dismiss the complaint of plaintiff Felipe Fajardo for failure to comply with court ordered deposition and request for terminating and monetary sanctions is **GRANTED**. (Code Civ. Proc., § 2023.030, subd. (d)(3).) The Court finds that plaintiff's continued failure to appear for his deposition, in violation of the Court's October 30, 2025, Order, warrants dismissal of plaintiff's complaint. (Code Civ. Proc., § 2023.010, subds. (d), (g); *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390 [terminating sanctions are warranted based on repeated refusals to respond to discovery requests and violation of previous court orders]; *Van Sickle v. Gilbert* (2011) 196 Cal.App.4th 1495, 1516; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 992; Rose Decl., ¶¶ 4 – 10, Exhibits 2 – 4.)

The Court awards defendant sanctions in the amount of **\$2,492.50**. (Code. Civ. Proc., 2030.030, subd. (a); Rose Decl., ¶ 23, Exhibits 5, 6.)

Plaintiff **SHALL** pay this sanction by **February 14, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.